



**Federal Communications Commission
Enterprise Acquisition Center**

**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
IN ACCORDANCE WITH FEDERAL ACQUISITION REGULATION (FAR) 6.302**

Procurement Request Title	Robocall Mitigation Data Analytics
Procurement Request Number	
Date	16-Apr-26
Approval of the use of other than full and open competition of the proposed contractual action pursuant to the authority of: ☒ FAR 6.302-1 - 41 U.S.C. 3304(a)(1), Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements ☐ FAR 6.302-2 - 41 U.S.C. 3304(a)(2), Unusual and Compelling Urgency ☐ FAR 6.302-3 - 41 U.S.C. 3304(a)(3), Industrial Mobilization; Engineering, Developmental, or Research Capability; or Expert Services ☐ FAR 6.302-4 - 41 U.S.C. 3304(a)(4), International Agreement ☐ FAR 6.302-5 - 41 U.S.C. 3304(a)(5), Authorized or Required by Statute ☐ FAR 6.302-6 - 41 U.S.C. 3304(a)(6), National Security ☐ FAR 6.302-7 - 41 U.S.C. 3304(a)(7), Public Interest (NOTE: Requires D&F in lieu of J&A) (See guidance at the end of this document for completing the following sections.)	
1. Identification of the agency and the contracting activity, and specific identification of the document as a "Justification for other than full and open competition."	
This Justification for other than full and open competition was prepared by the Federal Communications Commission ("FCC" or "Commission"), Office of the Managing Director, Enterprise Acquisition Center, located at 45 L Street NE, Washington DC 20554, with the assistance of FCC's Enforcement Bureau (the "requiring activity" or "Bureau").	
2. Nature and/or description of the action being approved.	
This requirement is for a fixed price contract with YouMail, Inc., (YMPS), a Delaware corporation with offices at 43 Corporate Park, Suite 200, Irvine, California 92606 to acquire briefings and reports from YMPS to provide detailed information and data about illegal telecommunications marketing calls. In addition, the FCC will purchase raw call detail data from YMPS to be integrated with its own consumer complaint data.	
3. A description of the supplies or services required to meet the agency's needs (including the estimated value) (FAR 6.303-2(b)(3)).	
This effort is for Briefings, Reports and Data Analysis, and Call & SMS Text Record Evidence Data to include: In-person briefings will be provided weekly, bi-weekly or monthly; • The Contractor may provide briefings about "Active Campaigns" and "Mitigated / Inactive Campaigns." • Campaign Topics are deemed "Active" or "Mitigated/Inactive" using the following criteria: - o "Active Campaigns" are those where Campaigns are still generating weekly calls or SMS texts of a sufficient volume where 5-100% of the calls or SMS texts are still observed on a week-to-week basis. - o "Mitigated Campaigns" are those where Campaigns have experienced mitigation or enforcement and the weekly volume is below 5% of the pre-mitigation volumes. - o "Inactive Campaigns" are those that have had no active call or text evidence identified within the topic for at least a 30-day period, using the first day of the prior calendar month as the starting date. • "Active Campaign" Topic briefings are capped during a 90-day period (the first one beginning with the award date of this contract) to the following limits: - o 1 Large Campaign Topic; - o 1 Medium Campaign Topic; and - o 1 Small Campaign Topic • "Mitigated / Inactive Campaign" Topics briefings are capped during a 90-day period (the first one beginning with the award date of this contract) to the following limits: - o 4 Large Campaign Topics;	

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4. An identification of the statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C.253(c)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart:

- 6.302-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.
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YouMail, Inc. operates a Consumer Sensor Network across all major Mobile Network Operators (MNOs) on the public switched telephone network, inclusive of Verizon, AT&T, T-Mobile, Sprint, Cricket, US Cellular and over one hundred other carriers. YouMail enables consumers to opt into answering and voicemail services on these networks where their unanswered calls are screened and unlawful robocalls identified. YouMail, Inc. utilizes machine learning and artificial intelligence to isolate and classify these calls which enables them, respectful of CPNI restrictions, to be collected and tracked as part of a Robocall Campaign or Robocall Campaign Topic. As a Robocall Campaign or Robocall Campaign Topic, these robocalls can be linked to a Subject of Interest (SOI) originating these calls can be connected with STIR/SHAKEN attestation data, traced, analyzed and/or investigated, enabling enforcement and/or shutdown of their operations.

YMPS uses proprietary software to provide protection to its subscribers in the United States from unwanted telecommunications marketers and solicitors. It collects volumes of call data received by its subscribers' accounts and conducts extensive analyses of the communications data in order to uncover significant details about the call data, which will be relied upon by FCC as evidence to support a sufficiency finding that the identified calls are illegal and/or unlawful communications. The call detail records (CDRs) of voice service providers (VSPs) that originate or transit these robocalls are compared to the actual consumer calls that YouMail, Inc. has answered and saved, which serves as irrefutable evidence of the unlawful activities aided or enabled by originating communication service providers. MPS

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under 5.202 applies.

The responsible office within FCC/EB will continue to review the market to analyze the market to determine other capable suppliers for this effort.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer will conduct appropriate steps in order to ensure that the price is determined fair and reasonable.

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8. A description of the market research conducted (see part 10) and the results or a statement of the reason market research was not conducted. YouMail remains the only known-call analytics company that collects data on robocalls and provides analytics capabilities to identify specific robocall campaigns. A campaign consists of calls that use a similar script, voice, caller ID number, and/or STIR/SHAKEN attestation indicating that they are likely related. The Enforcement Bureau regularly engages with industry and the public on the latest tools used to identify and combat illegal robocalls. YouMail is an active participant at industry conferences and is a key partner with USTelecom's Industry Traceback Group (ITG). The ITG is responsible for coordinating private led efforts to trace the origination of suspected illegal robocalls. The FCC Enforcement Bureau has conducted Market Research and determined that six (6) other companies: Hiya; Transaction Network Services (TNS); First Orion; Robokiller; Pindrop; and Marchex. The companies offer call analytics
9. Any other facts supporting the use of other than full and open competition. Congressional efforts to mitigate robocalls focus on strengthening the FCC's authority through legislation like the TRACED Act (2019), which mandated STIR/SHAKEN call authentication and established the Robocall Mitigation Database. Recent actions (2025–2026) include bolstering database integrity, introducing the Foreign Robocall Elimination Act, and proposing stricter penalties for AI-generated scam calls. Federal Register (.gov) Federal Register (.gov) +5 Key Congressional & Regulatory Actions TRACED Act Implementation: Enabled the FCC to impose penalties without prior warnings and extended the statute of limitations to four years for illegal, intentional robocall violations. Robocall Mitigation Database: Voice providers must certify their compliance with anti-robocall rules; the FCC has removed over 1,200 non-compliant providers, blocking them from the U.S. network. Foreign Call Mitigation: The Foreign Robocall Elimination Act is a bipartisan effort aimed at stopping international, illegal robocalls from entering the U.S.. AI and Emerging Threats: Legislation has been proposed to compel AI disclosure in calls and double penalties for using AI to impersonate individuals.
10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition. None

